

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

July 16, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Aguilar v. TYR Sport, Inc. 2021-01188780	Off calendar.
2	Andrade v. Harbor Truck Bodies, Inc. 2023-01367894	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$450,000 class action and PAGA

		settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$135,000.00 for attorneys' fees (not to exceed); \$10,000.00 for attorneys' costs (not to exceed); \$8,600.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$15,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by July 23, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto; and notice packet (in English and Spanish)). The final approval hearing is scheduled for <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. No earlier hearing date is available for this motion.
3	Cruz v. Pacific Life Insurance Company 2025-01517146	<u>Defendant Pacific Life Insurance Company's Motion for Attorneys' Fees and Costs</u> Defendant Pacific Life Insurance Company moves for an order pursuant to Civil Procedure Code section 128.5 awarding it \$31,797.00 in attorneys' fees and costs. For the following reasons, defendant's motion is denied. Civil Procedure Code section 128.5 states, in relevant part: "(a) A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. . . . "(b) For purposes of this section: "(1) 'Actions or tactics' include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. . . . "(2) 'Frivolous' means totally and completely without merit or for the sole purpose of harassing an opposing party. . . . "(f) Sanctions ordered pursuant to this section shall be ordered pursuant to the following conditions and procedures: "(1) If, after notice and a reasonable opportunity to respond, the court issues an order pursuant to subdivision (a), the court may,

subject to the conditions stated below, impose an appropriate sanction upon the party, the party's attorneys, or both, for an action or tactic described in subdivision (a). In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence.

"(A) A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay.

"(B) If the alleged action or tactic is the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected.

"(C) If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion. Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees.

"(D) If the alleged action or tactic is the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, the court on its own motion may enter an order describing the specific action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay, and direct an attorney, law firm, or party to show cause why it has made an action or tactic as defined in subdivision (b), unless, within 21 days of service of the order to show cause, the challenged action or tactic is withdrawn or appropriately corrected."

Civ. Proc. Code § 128.5.

A party seeking sanctions under section 128.5 must follow a two-step procedure:

"First, the 'moving party must serve on the offending party a motion for sanctions.'" [Citation.] Service of the sanctions motion triggers the 21-day safe harbor period during which the moving party may not file the motion. [Citation.] That is because the offending party may avoid sanctions by withdrawing the challenged pleading during the 21-day period. [Citation.] Second, if the offending party does not withdraw the challenged pleading during that period, then the moving party may file the sanctions motion. [Citation.]

"The '21 days is not a notice period. . . . It defines when the target of a sanctions motion can act without penalty and withdraw' an objectionable document. [Citation.] The moving party must file the motion 'outside the safe harbor period,' not 'on day one of the

safe harbor period, day 21 of the safe harbor period, or any day in between.’ [Citation.] In other words, the ‘sanctions motion cannot be filed until the 22nd day after service of the motion, i.e., after the 21-day safe harbor period expires.’ [Citation.]

“Moreover, the law requires strict compliance with the safe harbor provisions. [Citation.] Failure to comply with the safe harbor provisions ‘precludes an award of sanctions.’ [Citations.]”

Transcon Financial, Inc. v. Reid & Hellyer, APC (2022) 81 Cal.App.5th 547, 550-51 (italics in original).

Defendant contends plaintiff and her counsel “engaged in bad faith actions and tactics that were frivolous and solely intended to cause unnecessary delay, forcing [defendant] to incur substantial and avoidable attorneys’ fees and costs.” Notice of Motion (ROA 89) at 2:10-12. Specifically, defendant asserts that plaintiff stipulated to amend her complaint, filed a first amended complaint that allegedly did not conform to the stipulation, and dilly-dallied in resolving the issue, which resulted in defendant filing a motion to enforce the parties’ stipulation, before plaintiff ultimately stipulated to amend the complaint again. ROA 80. Defendant asserts it incurred \$31,797.00 in attorneys’ fees and costs in connection with plaintiff’s filing of the first amended complaint (\$1,912.50 for correspondence attempting to resolve the issue; \$17,770.50 for preparing and filing the motion to enforce the stipulation; and \$12,114.00 for preparing and filing the instant sanctions motion). Wolgin Decl. ¶ 15. Defendant filed the sanctions motion on May 8, 2026, and served plaintiff with the motion the same day. ROA 89.

The alleged action or tactic at issue here is plaintiff’s filing of the first amended complaint that defendant asserts did not comply with the parties’ stipulation. See, e.g., Brief (ROA 89) 6:20-22 (“Despite this Stipulation and Order, . . . Plaintiff filed a First Amended Class Action Complaint . . . that failed to exclude variable life insurance policies from the proposed classes”); *id.* at 7:1-2 (“[P]acific Life’s counsel made no fewer than eight written attempts and multiple telephone attempts to request that Plaintiff correct the amended complaint”). The first amended complaint is a pleading that plaintiff could have withdrawn. The 21-day safe harbor provision in section 128.5(f)(1)(B) therefore applies to the motion. While defendant asserts plaintiff engaged in other conduct that did not constitute the filing of a pleading, and thus that the safe harbor provision does not apply, the other conduct about which defendant complains (e.g., plaintiff’s delay in resolving the first amended complaint issue; plaintiff’s alleged failure to meet and confer about resolving the first amended complaint issue) plainly arises from plaintiff’s filing of the first amended complaint. Because the safe harbor provision applies, and because defendant did not comply with it, the motion must be denied. See, e.g., *Transcon*, 81 Cal.App.5th at 551.

In re Marriage of Sahafzadeh-Taeb & Taeb (2019) 39 Cal.App.5th 124, on which defendant relies, does not apply here. In that case, the court awarded sanctions pursuant to section 128.5 based solely

		on counsel's conduct: "And given the nature of the conduct on which the sanctions were based—Trigger's misrepresentation to the court that she was ready to proceed to trial, when she was, in fact, not ready, her failure to ever correct the court's misapprehension as to her readiness, and her delay in seeking a continuance until after the case was called for trial—the 'safe harbor' provisions are not applicable. Rather, these provisions allow time for the withdrawal of frivolous pleadings." <i>Id.</i> at 147. As discussed above, the challenged conduct here is plaintiff's filing of a pleading, i.e., the first amended complaint that defendant contends did not comply with the parties' stipulation. Plaintiff to give notice.
4	Cruz v. PMAB-8, LLC 2023-01318976	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$700,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The following phrase should be removed from paragraph I.B of the settlement agreement: "or needed by the Settlement Administrator." 2. The "Released Claims" provision in paragraph I.Y of the settlement agreement is overbroad. Releases for aggrieved employees other than plaintiffs should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. In addition, the settlement agreement should use a consistent term for the aggrieved employees' release, i.e., "Released Claims" rather than "Released PAGA Claims." 3. Subsection (b) of paragraph III.A.I of the settlement agreement should be removed. The court will not approve a settlement that permits defendant to shorten the PAGA period. 4. Plaintiff's counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount.

		Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here. 5. Plaintiff seeks a \$10,000 enhancement award. Absent unique circumstances, the court is unlikely to approve an enhancement award that exceeds \$2,500 for this settlement. Plaintiff should address in the supplemental filings whether any such unique circumstances exist here. 6. Plaintiff states the settlement administration fees total \$6,651. Brief (ROA 126) at 15:21. The settlement administrator's invoices states the fees total \$7,661. Bui Decl. (ROA 133) Ex. C. The parties should address and resolve this discrepancy in the supplement filing. <u>As to the notice letter:</u> 7. The notice should be revised as necessary consistent with the above. 8. The acronym "PAGA" should be inserted before "settlement" in the title of the notice and in the first sentence. 9. The table of contents on page 1 of the notice should be removed. 10. The word "expressly" should be removed in the fourth paragraph of section 2. 11. Section 4 should state when the aggrieved employees' release is effective. 12. The notice letter should provide the URL for the case website. See Proposed Order & Judgment (ROA 124) ¶ 18. 13. Defendant's counsel states the notice letter should be provided in Spanish, in addition to in English. A. Cruz Decl. (ROA 134) ¶ 3. A certified Spanish-language translation of the notice letter should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 124):</u> 14. The proposed order and judgment should be revised consistent with the above. 15. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). 16. The proposed order and judgment should state the Gross Settlement Amount. 17. Paragraph 18 of the proposed order and judgment should state that a copy of the Order and Judgment will be posted on the settlement administrator's website for at least 180 days.
--	--	---

		18. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 19. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
5	De La Riva v. Cirks Construction, Inc. 2023-01339825	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of an \$270,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the March 12, 2026 order (ROA 120), the court stated that the October 16, 2025 order (ROA 107) had identified several issues in the notice and attached forms for the parties to address, but that the parties had not submitted copies of the revised notice and forms to the court. The court ordered the parties to submit copies of the revised notice and forms to the court with the supplemental filings, together with redlines showing the changes made to the documents, and stated that the revised notice and forms should address all of the issues identified in the October 16, 2025 order. The following issues identified in the October

		16, 2025 order have not been addressed in the revised notice and attached forms: a. The effective date of the Participating Class Members' Release in section 3(9) is still inconsistent with the release in paragraph 5 of the amendment to the settlement agreement and with the effective date of the Aggrieved Employees' PAGA Release in section 3(10) of the notice. 10/16/25 Order (ROA 107) No. 33. b. The paraphrased release in section 3(9) of the notice has not been removed. 10/16/25 Order (ROA 107) No. 34. c. The effective date of the Aggrieved Employees' PAGA Release in section 3(10) is still inconsistent with the release in paragraph 5 of the amendment to the settlement agreement and with the effective date of the Participating Class Members' Release in section 3(9) of the notice. 10/16/25 Order (ROA 107) No. 35. d. The paraphrased release in section 3(10) of the notice has not been removed. 10/16/25 Order (ROA 107) No. 36. e. Only one of the "[need details]" phrases in section 7 has been replaced with the relevant information. 10/16/25 Order (ROA 107) No. 40. f. The last two bolded sentences of the second paragraph of the objection form have not been removed. 10/16/25 Order (ROA 107) No. 52. g. The method of transmitting the objection form stated in the objection form is still inconsistent with the settlement agreement. 10/16/25 Order (ROA 107) No. 53. h. The method of transmitting the exclusion form stated in the exclusion form is still inconsistent with the settlement agreement. 10/16/25 Order (ROA 107) No. 50. 2. A certified copy of the Spanish-language notice is not attached to the proposed order as an exhibit. 10/16/25 Order (ROA 107) Nos. 55, 59; 3/12/26 Order (ROA 120) No. 9. 3. The proposed final approval hearing date should be stated in the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended</u>
--	--	--

		<u>settlement agreement,” to streamline the court’s review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
6	Flores v. KML Services, Inc. 2024-01375907	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff’s motion for preliminary approval of an \$485,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the March 5, 2026 order (ROA 104), the court ordered the parties to provide, <i>inter alia</i>, the estimated average individual PAGA payment. 3/5/26 Order (ROA 104) No. 4. This has not been done. 2. In the March 5, 2026 order, the court ordered plaintiff to provide his total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). 3/5/26 Order (ROA 104) No. 5. Plaintiff states he anticipates receiving \$498.85 as his individual class payment and no individual PAGA payment. Does plaintiff anticipate receiving any compensation for any individual claims? 3. The “Released Parties” provision in paragraph 1.41 of the settlement agreement is unclear and appears to be missing words. To whom does subsection (iii) pertain? Is there a word missing between “parents, subsidiaries” in subsection (ii)? Is there a word missing between “subsidiaries;” and “(iii)””? Is there a word missing between “partners, managers”? 4. The parties should provide legal authority supporting the last sentence of paragraph 7.6 or that sentence should be removed. 5. In the March 5, 2026 order, the court stated that while it will not determine the amount of attorneys’ fees to be awarded until final approval, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff’s counsel states that counsel is not aware of any unique circumstances. Supp. Brief (ROA 111) at 7:7. The court preliminarily finds

		attorneys' fees not to exceed 30% of the gross settlement amount reasonable for this case. 6. In the March 5, 2026 order, the court noted that plaintiff's counsel seeks costs not to exceed \$25,000. The court stated that plaintiff's counsel should provide an itemized list of costs incurred to date, and that nonrecoverable items such as postage, mailing and legal research charges should not be included. 3/5/26 Order (ROA 104) No. 18. Plaintiff's counsel (Haines Law Group, APC) has nevertheless included postage and legal research costs. Haines Decl. (ROA 115) ¶ 3. These charges, as well as nonrecoverable copying charges, should be removed. 7. In the March 5, 2026 order, the court noted that plaintiff sought an enhancement award of \$10,000. The court stated that while it will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$2,500 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The circumstances described in plaintiff's supplemental brief (ROA 111 at 7:24-8:2) are not unique. Plaintiff also states in the supplemental brief that a \$7,500 enhancement award is reasonable "given Plaintiff's general release of all claims, including a waiver of rights under Civil Code section 1542." Supp. Brief (ROA 111) at 7:25-26. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court preliminarily finds an enhancement award not to exceed \$2,500 reasonable for this case. <u>As to the notice:</u> 8. The notice should be revised consistent with the above. 9. As stated above, the parties should provide legal authority supporting the last two sentences of section 4(3) of the notice or those sentences should be removed. 10. All of the first paragraph of section 7 after the first sentence should be removed. The remaining sentence should become the first sentence of the second paragraph. 11. The notice should advise the aggrieved employees that they are bound by the PAGA release even if they do not cash their checks. 3/5/26 Order (ROA 104) No. 38.
--	--	--

		12. Section 9 of the notice should state that the settlement administrator will post the judgment on the case website for at least 180 days. 3/5/26 Order (ROA 104) No. 39. 13. The method of submitting the exclusion form stated on the form is inconsistent with the settlement agreement and should be revised. 14. The method of submitting objection form stated on the form is inconsistent with the settlement agreement and should be revised. 15. As stated in the March 5, 2026 order (ROA 104, No. 40), a certified copy of the translated notice should be attached as exhibit to the proposed order. <u>As to the proposed order:</u> 16. The proposed order should be revised consistent with the above. 17. The parties did not submit a separate copy of the proposed order, but rather submitted the proposed order as an exhibit to the Sani Declaration (ROA 116). The proposed order should be submitted as a separate document. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>December 3, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
7	Frye v. Progressive Casualty Insurance Company 2025-01477541	Off calendar.
8	Malecki v. Frisbie Management, Inc.	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u>

	2024-01423675	The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$1,850,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties should state the estimated average, high and low individual class and average, high and low individual PAGA payments. 2. Plaintiff should state plaintiff's total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Plaintiff should also state in a declaration filed with the court the estimated number of hours she has spent working on the case. 3. A copy of the LWDA notice letter should be submitted to the court. 4. The word "Actions" in paragraph 1.31 of the settlement agreement should be replaced with "in Case No. 2024-01423675." 5. The court prefers a 60-day period for the submission of exclusions, objections and disputes. Are there special circumstances here that warrant the shorter period the parties propose? See, e.g., Settlement Agreement ¶¶ 1.44, 7.4.4, 7.5.1, 7.6. 6. The "Response Deadline" provision in paragraph 1.44 should include disputes. 7. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry and since the time the settlement agreement was signed, they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action and, if any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 8. The parties and their counsel must state in declarations filed with the court whether they have an interest in the cy pres recipient, including its governance. The parties should also provide a declaration demonstrating the propriety of the cy pres recipient and of a distribution under Civil Procedure Code section 384, and the parties should explain why a cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate. 9. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel."
--	---------------	--

		10. The "Released Class Claims" provision in paragraph 5.2 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. In addition, the phrase "or ascertained during the Action" should be removed. 11. The "Released PAGA Claims" provision in paragraph 5.3 is overbroad. The phrase "or ascertained during the Action" should be removed. 12. The dispute procedure in the second-to-last sentence in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.4 of the settlement agreement should also be revised accordingly. In addition, in the fourth sentence of paragraph 7.6, the phrase "and PAGA Pay Periods" should be inserted after "Workweeks" and before "contained." 13. Subsection (2) in paragraph 8 should be removed, as should be the third-to-last sentence in the same paragraph. The court will not approve a settlement that permits defendant to shorten the class or PAGA period. 14. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. 15. Plaintiff's counsel seeks costs not to exceed \$30,000. Plaintiff's counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included. 16. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 17. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement
--	--	---

		funds. The parties should also submit a copy of the settlement administrator's invoice. 18. The parties (plaintiff and defendant) should state in declarations filed with the court whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case, other than <i>Malecki v. Frisbie Management, Inc.</i>, Case No. 2025-01452208. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. <u>As to the notice:</u> 19. The notice should be revised consistent with the above. 20. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed. In addition, redundant section headings (e.g., "BASIC INFORMATION"; "WHO IS INCLUDED IN THE SETTLEMENT?"; etc.) should be removed throughout the document. 21. The word "strongly" should be removed from the last sentence of the first paragraph on page 1. 22. The word "already" should be removed from the first sentence of the fifth paragraph on page 1. 23. The following sentence at the bottom of page 1 should be removed: "You will be deemed to have carefully read and understood it." 24. The following phrase should be inserted after "Defendant" and before "at some point(s)" in the first sentence of section 1: "as an hourly-paid non-exempt employee." 25. The word "Administrator" should not be capitalized in the first sentence of the third paragraph of section 1. 26. The word "strongly" should be removed from the last sentence in section 2. 27. Section 3 ("Why Is This A Class Action?") should be removed. 28. The second, third and fourth sentences of section 4 should be removed, as should the word "Instead" at the beginning of the fifth sentence. 29. The Gross Settlement Amount in the first sentence of section 7 need not be spelled out in words. 30. The word "Fairness" in the first sentence of section 10 should be replaced with "Approval." 31. The second sentence of the first paragraph of section 11 should end after "Defendant." The remainder of that
--	--	---

		sentence is inconsistent with the settlement agreement and should be removed. See Settlement Agreement ¶ 1.42. 32. The "Released Class Claims" in section 11 is inconsistent with the settlement agreement which must, as stated above, be revised. 33. The "Released PAGA Claims" in section 11 is appropriately tailored, but inconsistent with the settlement agreement which must, as stated above, be revised. 34. The method of submitting an exclusion stated in section 12 is inconsistent with the settlement agreement and should be revised. 35. The court prefers the notice be accompanied by separate objection, exclusion and dispute forms for those class members wishing to object, exclude themselves or dispute the number of workweeks. The settlement agreement and the notice should be revised accordingly to address use of separate objection, exclusion and dispute forms. 36. The first two sentences of section 15 should be removed and be replaced with the following: "Class Counsel's contact information is listed below." 37. The following phrase should be removed from the third sentence of section 17: "and notices of intent to appear at the Final Approval Hearing." 38. The method of submitting objections stated in section 17 is inconsistent with the settlement agreement and should be revised. 39. Section 18 should be removed. 40. The court department (CX105) should be updated throughout the notice (e.g., in section 19). 41. The method of submitting objections stated in section 20 is inconsistent with the settlement agreement and should be revised. 42. Will the settlement administrator maintain a website for the case? If so, section 22 should state that the settlement administrator will post all key documents on its website, including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted for at least 180 days. 43. The second sentence of the box in section 22 should be removed. 44. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit.
--	--	--

As to the proposed order (ROA 69, 79):

45. The proposed order should be revised consistent with the above.
46. The court department (CX105) should be updated on the caption page and throughout the document.
47. The last sentence of paragraph 1 should be revised to state that the settlement agreement (and any amendment(s) thereto) is attached to the proposed order as an exhibit. The reference to the Yslas Declaration should be removed.
48. The phrase "to create a common fund" in paragraph 2 should be replaced with "to pay the Gross Settlement Amount."
49. The proposed order should define the Aggrieved Employees and the PAGA Period.
50. The word "fairness" in paragraph 4 should be replaced with "approval."
51. The word "provisionally" in paragraph 5 should be replaced with "preliminarily."
52. In paragraphs 8, 9 and 10, the word "preliminarily" should be inserted before "appoints."
53. The second sentences of paragraphs 8 and 9 should be removed.
54. Paragraph 10 should end after "the Settlement Administrator." The remaining portion of that sentence should be removed.
55. Paragraph 11 should be revised to state that notice packet is attached to the proposed order as an exhibit.
56. The phrase "their counsel, and the Settlement Administrator" should be inserted in paragraph 12 after "Parties" and before "are ordered to carry out."
57. Paragraph 13 should be removed.
58. The proposed order should state that the court retains jurisdiction to enforce the Settlement pursuant to Civil Procedure Code section 664.6.

The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to November 19, 2026 at 2:00 p.m. in Department CX105 to permit the parties to address and respond to the above issues. See *also* Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended

		<u>settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Masadas v. California Dinner Entertainment, LLC 2023-01354556	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of an \$620,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$1,000.00 enhancement award to each plaintiff (\$3,000.00 total); \$186,000.00 for attorneys' fees; \$26,933.70 for attorneys' costs (see No. 1 below); \$4,250.00 for settlement administration fees (see No. 2 below); and \$399,816.30 total PAGA penalties (\$299,862.22 to LWDA). 1. Blackstone Law, APC previously sought reimbursement of \$7,874.89 in costs. See 3/12/26 Order (ROA 105) No. 7. Blackstone Law, APC now seeks reimbursement of \$10,141.45 in costs. Blackstone Law, APC provides no explanation for the disparities in entries and amounts between the itemized costs statement it previously submitted (Rose Decl. (ROA 81) Ex. 4) and the itemized costs statement it submitted with the most recent supplemental papers (Rose Decl. (ROA 117) Ex. 4). The court thus approves \$7,758.19 in Blackstone Law, APC costs (\$7,874.89 less mailing changes and the "Wizzy Marketing" cost). See 3/12/26 Order (ROA 105) No. 7. 2. The court approves \$4,250 in settlement administration fees, i.e., \$5,000 less the \$750 fee for the language translation that counsel states is not required. See ROA 111 (¶ 13); ROA 79 (Ex. C at 2). 3. Blackstone Law, APC states that it has a referral fee agreement with Tork Law Firm. Rose Decl. (ROA 117) ¶ 13. Blackstone Law, APC must file a declaration <u>by July 23, 2026</u> describing the financial terms of the agreement with Tork Law Firm. Plaintiffs are ordered to submit <u>by July 23, 2026</u> a proposed order and judgment (including the above amount) with all exhibits attached (settlement agreement; amendments thereto; and notice letter). The notice letter should be revised to include the above amounts.

		The final accounting hearing is scheduled for <u>October 29, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
10	Masadas v. California Dinner Entertainment, LLC 2023-01349443	Off calendar.
11	Parcell v. California Dinner Entertainment, LLC 2023-01350262	Off calendar.
12	Mejorado v. Rainbow Sandals, Inc. 2022-01283098	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$250,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$75,000.00 for attorneys' fees (not to exceed); \$15,000.00 for attorneys' costs (not to exceed); \$4,995.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$15,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by July 23, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached as follows: <u>Exhibit 1</u>, fully executed copies of the settlement agreement and first and second amendments thereto; and <u>Exhibit 2</u>, the notice packet (in English and Spanish). The citations to the exhibits in the proposed order should be updated accordingly and paragraph 13 of the proposed order should be revised. In addition, the "Workweek Challenge Form" should be revised to include pay periods. The final approval hearing is scheduled for <u>December 10, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org).

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. No earlier hearing date is available for this motion.
13	Parra v. Fueling and Service Technologies, Inc. 2025-01493605	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$385,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Plaintiff should state in a declaration filed with the court whether he anticipates receiving any compensation for any individual claims, the work he has done on the case, and the estimated number of hours he has spent working on the case. 2. The "Released Parties" provision in paragraph 1.42 is overbroad, as it includes unidentified, unrelated and/or ambiguous third parties such as "and their respective owners, officers, directors, agents, attorneys, managers, insurers, and partners." 3. The court prefers a 60-day period for the submission of exclusions, objections and disputes. Are there special circumstances here that warrant the shorter period the parties propose? See, e.g., Settlement Agreement ¶¶ 1.44, 7.4.4, 7.5.1, 7.6, 7.7.2. 4. The "Response Deadline" provision in paragraph 1.44 should include disputes. 5. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry and since the time the settlement agreement was signed, they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action and, if any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 6. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel." 7. The second-to-last sentence in paragraph 5.2 should be removed as its meaning and purpose are unclear. 8. The dispute procedure in the second-to-last sentence in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the

		disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.4 of the settlement agreement should also be revised accordingly. 9. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. 10. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 11. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement funds. The parties should also submit a copy of the settlement administrator's invoice. <u>As to the notice:</u> 12. The notice should be revised consistent with the above. 13. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed. In addition, redundant section headings (e.g., "BASIC INFORMATION"; "WHO IS INCLUDED IN THE SETTLEMENT?"; etc.) should be removed throughout the document. 14. The phrase "Actions were" in the first paragraph on page 1 should be replaced with "Action was." 15. The word "already" should be removed from the first sentence of the fifth paragraph on page 1. 16. The following sentence at the bottom of page 1 should be removed: "You will be deemed to have carefully read and understood it." 17. The following phrase should be inserted after "Defendant" and before "at some point(s)" in the first sentence of section 1: "as an hourly-paid non-exempt employee." 18. The word "Administrator" should not be capitalized in the first sentence of the third paragraph of section 1.
--	--	--

		19. Section 3 ("Why Is This A Class Action?") should be removed. 20. The second, third and fourth sentences of section 4 should be removed, as should the word "Instead" at the beginning of the fifth sentence. 21. The Gross Settlement Amount in the first sentence of section 7 need not be spelled out in words. 22. The word "Fairness" in the first sentence of section 10 should be replaced with "Approval." 23. The definition of "Released Parties" in second sentence of the first paragraph of section 11 is inconsistent with the settlement agreement which must, as stated above, be revised. 24. The "Released Class Claims" in section 11 is inconsistent with the settlement agreement. 25. The "Released PAGA Claims" in section 11 is appropriately tailored, but inconsistent with the settlement agreement. The "Released PAGA Claims" provision in the settlement agreement should be revised to mirror the definition in section 11 of the notice. 26. The method of submitting an exclusion stated in section 12 is inconsistent with the settlement agreement and should be revised. 27. The court prefers the notice be accompanied by separate objection, exclusion and dispute forms for those class members wishing to object, exclude themselves or dispute the number of workweeks. The settlement agreement and the notice should be revised accordingly to address use of separate objection, exclusion and dispute forms. 28. The first two sentences of section 15 should be removed and be replaced with the following: "Class Counsel's contact information is listed below." 29. The following phrase should be removed from the third sentence of section 17: "and notices of intent to appear at the Final Approval Hearing." 30. The method of submitting objections stated in section 17 is inconsistent with the settlement agreement and should be revised. 31. Section 18 should be removed. 32. The method of submitting objections stated in section 20 is inconsistent with the settlement agreement and should be revised. 33. Will the settlement administrator maintain a website for the case? If so, section 22 should state that the settlement administrator will post all key documents on its website,
--	--	--

		including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted for at least 180 days. 34. The second sentence of the box in section 22 should be removed. 35. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 41):</u> 36. The proposed order should be revised consistent with the above. 37. The last sentence of paragraph 1 should be revised to state that the settlement agreement (and any amendment(s) thereto) is attached to the proposed order as an exhibit. The reference to the Yslas Declaration should be removed. 38. The phrase "to create" in paragraph 2 should be replaced with "to pay." 39. The word "provisionally" in paragraph 5 should be replaced with "preliminarily." 40. The second sentences of paragraphs 9 and 10 should be removed. 41. Paragraph 11 should end after "the Settlement Administrator." The remaining portion of that sentence should be removed. 42. Paragraph 12 should be revised to remove the reference to the notice packet being attached to the settlement agreement. It is sufficient to state that the notice packet is attached to the proposed order. 43. The phrase "their counsel" should be inserted in paragraph 13 after "Parties" and before "and the Settlement Administrator." 44. Paragraph 14 should be removed. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents.
--	--	---

		Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
14	Sandoval v. Fortis Enterprise Inc. 2025-01461144	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$117,500 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Why is the defendant funding the settlement funds in three installments? Settlement Agreement ¶ III.2. If defendant is paying the settlement in installments due to defendant's financial condition, admissible evidence of defendant's financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. 2. The parties should provide the estimated high and low individual PAGA payments. 3. Plaintiff should provide her anticipated total amount to be received (including for any individual claims). Plaintiff should also submit a copy of her individual settlement agreement. The court declines to review the document in camera, as all materials filed in support of plaintiff's motion must be part of the court file for this action. If the parties contend the agreement is confidential, the parties should have lodged a copy of the agreement conditionally under seal and filed a noticed motion to seal the document before the July 16, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so, as the court will not grant plaintiff's motion until the agreement has been submitted to the court. The motion to seal should explain, <i>inter alia</i>, why plaintiff's individual settlement agreement should be shielded from, e.g., the aggrieved employees whose interests plaintiff purports to represent.

		4. The definition of "Individual PAGA Payment" in paragraph 1.6 is inconsistent with paragraph III.4.b. 5. The settlement agreement should state whether any portion of the gross settlement amount will revert to defendant. 6. The "Released Claims" provision in paragraph I.18 is overbroad. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. In addition, paragraph III.5 appears duplicative of portions of paragraph I.18. Paragraphs I.18 and III.5 should be harmonized. The last sentence of paragraph III.5 appears to contradict the first sentence of the same paragraph. 7. The "Released Parties" provision in paragraph 1.19 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "unit holders," "agents, principals, heirs, representatives, accountants, auditors, consultants," "affiliates," and "attorneys." In addition, the phrase "from all claims, demands, rights and liabilities as set forth above" does not make sense and should be removed. 8. Paragraphs V.16 and V.17 should be revised to state that the prevailing party attorneys' fees and costs provisions in those paragraphs will not be enforced against unnamed aggrieved employees. 9. Defendant should advise, in a declaration filed with the court, whether, after making reasonable inquiry, it is aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 10. Plaintiff's counsel must submit contemporaneous time records reflecting the timekeeper, date of work, task, and time spent on each task. 11. Attorney Gaines states he is sharing fees with other law firms, divided as follows: 66 2/3% to Gaines Law Corporation; 16 2/3% to Gaines & Gaines, APLC, and 16 2/3% to Law Offices of Alex P. Katofsky, APC. Gaines Decl. ¶ 38. If the law firms of Gaines & Gaines, APLC and Law Offices of Alex P. Katofsky, APC performed work on the case, those law firms must submit time records, billing statements, or other records contemporaneously documenting the work performed and time spent by each timekeeper at those firms. If Gaines & Gaines, APLC and Law Offices of Alex P. Katofsky, APC did not perform any work on the case, counsel should so state.
--	--	--

		12. Plaintiff's counsel must submit invoices substantiating the mediation (\$5,665) and expert (\$1,115.44) charges. Plaintiff's counsel must itemize the filing fees and should identify the "misc" fees or remove them. The court will not award "future estimated expenses" not incurred. <u>As to the notice:</u> 13. The notice should be revised as necessary consistent with the above. 14. The notice should use the same terms as in the settlement agreement, e.g., "PAGA Settlement Employee" rather than "PAGA Members." 15. In the second sentence of the fourth paragraph, the word "vigorously" should be removed. 16. In the second sentence of the second full paragraph on page 2, the word "below" should be replaced with "above." 17. The first sentence of the third full paragraph on page 2 should be deleted. 18. The notice letter should provide the URL for case website maintained by the settlement administrator and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. 19. The settlement administrator's invoice includes a charge for a Spanish-language translation. Hartranft Decl. (ROA 37) Ex. B. If the notice letter should be translated into Spanish, a certified copy of the translation should be attached as an exhibit to the proposed order and judgment. <u>As to the proposed order and judgment (ROA 40):</u> 20. The proposed order and judgment should be revised consistent with the above. 21. The court department (CX105) should be updated in the introductory paragraph. 22. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). Paragraph 1 of the proposed order and judgment should be revised accordingly. 23. The proposed order and judgment should use the same terms as in the settlement agreement, e.g., "PAGA Settlement Employees" rather than "Aggrieved Employees." 24. The proposed order and judgment contains two paragraph 5s.
--	--	---

		25. The proposed order and judgment should state that the judgment will be posted on the settlement administrator's website for at least 180 days. 26. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 27. Paragraph 9 should be revised to stated that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
15	Varela v. Florence Crittenton Services of Orange County, Inc. 2025-01462276	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$500,000 class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? Exhibit E to the Otkupman Declaration (ROA 42) states that only a "Proposed Settlement" was submitted to the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should state the estimated average, high and low individual class payments and the estimated average, high and low individual PAGA payments.

		3. Plaintiff should state her total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). 4. The Class Period and the PAGA Period need a specific end date to enable the court to evaluate the fairness and reasonableness of the settlement. See Settlement Agreement ¶¶ 1.12, 1.31, 8. 5. Paragraph 1.24, which states that PAGA payments will be calculated based on workweeks, is inconsistent with other portions of the settlement agreement, which state that PAGA payments will be calculated based on pay periods. Paragraph 1.24 should be revised. 6. The "Released Class Claims" provision in paragraph 1.39 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. 7. The "Released PAGA Claims" provision in paragraph 1.40 is overbroad and, as drafted, unclear. The PAGA release should be revised to make clear that it does not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. 8. The "Released Parties" provision in paragraph 1.41 of the settlement agreement is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "attorneys, insurers" and "affiliates." In addition, Florence Crittenton Community Support is neither a party to the case or the settlement. Why is that entity appropriately included in the release? 9. The "Response Deadline" provision in paragraph 1.43 should include disputes. 10. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel." 11. The second-to-last sentence in in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.3 of the settlement agreement and section 4(C) (last sentence) of the notice should also be revised accordingly. 12. The third sentence of paragraph 8 should be removed and the last sentence should be revised. The court will
--	--	--

		not approve a settlement that permits defendant to shorten the Class Period and/or the PAGA Period. 13. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. 14. Plaintiff's counsel seeks costs not to exceed \$25,000. Plaintiff's counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included. 15. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 16. The parties (plaintiff and defendant) should state in declarations filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration(s) shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. <u>As to the notice:</u> 17. The notice should be revised consistent with the above. 18. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed. 19. The phrase "and PAGA" should be inserted after "CLASS ACTION" in the title of the notice and throughout the document, e.g., in the first sentence of the first paragraph on page 1. 20. The court prefers that the notice be accompanied by separate one-page exclusion, objection and dispute forms. The settlement agreement and the notice should be revised accordingly. 21. The word "already" should be removed from the first sentence of the fifth paragraph on page 1.
--	--	--

		22. The following sentence at the bottom of page 1 should be removed: "You will be deemed to have carefully read and understood it." 23. The word "strong" should be removed from the first sentence of the second paragraph of section 1. 24. The word "experienced" should be removed from the second sentence of the first paragraph of section 2, and "an" before "experienced" should then be replaced with "a." 25. The word "lengthy" should be removed from the first paragraph of section 2. 26. The word "strongly" should be removed from the second paragraph of section 2. 27. The following sentence should be removed from section 3(B)(1): "To date, Class Counsel have worked and incurred expenses on the Action without payment." 28. The phrase "up to" before "\$40,000" in section 3(B)(4) should be removed. 29. Sections 3(F), 6 and 7 should state the methods of submitting exclusion and objection forms. 30. The third sentence of section 3(F) should be revised to state that a class member may submit a letter as an alternative to submitting the exclusion form. 31. The second sentence of the second paragraph of section 3(F) should be removed as part of it is redundant of other portions of the notice and another part does not accurately describe the release. 32. The discussion of the releases in sections 3(I) and 3(J) should not rephrase or restate the releases, which must, in any event, be revised as stated above. The class members' release and the aggrieved employees' release should each be stated once. 33. The phrase "and as set forth in Section 5.3 of this Agreement" should be removed from section 3(I), as the notice does have a section 5.3 and the notice is not "this Agreement." 34. All of the first paragraph of section 7 should be removed, other than the first sentence. 35. The third sentence of section 8 should be removed. 36. The notice should advise the aggrieved employees that they are bound by the terms of the PAGA release even if they do not cash their checks. 37. Section 9 should state that the settlement administrator will post all key documents on its website, including the
--	--	---

		operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted for at least 180 days. 38. The first paragraph of the exclusion form should be removed. 39. The method of submitting the exclusion form stated on the form is inconsistent with the settlement agreement and should be revised. 40. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 37):</u> 41. The proposed order should be revised consistent with the above. 42. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. 43. The proposed order should state that the court preliminarily finds the settlement fair, reasonable and adequate, and in the best interests of the class members. 44. The proposed order should identify the class members and the aggrieved employees, including the class period and the PAGA period. 45. The proposed order should include a provision stating: "The court orders the parties, their counsel and the settlement administrator to carry out their duties and obligations in accordance with terms of the settlement agreement." 46. The proposed order should include a provision stating that the court retains jurisdiction pursuant to Civil Procedure Code section 664.6 to enforce the settlement. 47. The parties should propose a date for the final approval hearing. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be
--	--	--

		filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
16	Zazueta v. A Manouselis, Inc. 2023-01324404	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$105,000 PAGA settlement. The court has the following questions and comments: 1. In the September 11, 2025 order (ROA 80), the court stated that the "Released Parties" provision in the settlement agreement was overbroad, as it included unrelated, ambiguous and/or unidentified third parties. In the March 19, 2026 order (ROA 94), the court stated that the "Released Parties" provision in the addendum to the settlement agreement remained overbroad, as it continued to include unrelated, ambiguous and/or unidentified third parties, such as "affiliated companies, agents, managing agents," "servants," "indirect" owners, and "insurance companies, alleged joint employers and attorneys." The parties have revised the "Released Parties" provision in the second addendum to the settlement agreement to include "attorneys from Musick, Peeler & Garrett LLP, attorneys from Clark Hill LLP, attorneys from Mooradian Law, APC and Tokio Marine HCC." Why are these law firms properly included in the release, and what consideration has each law firm provided for the release? 2. The notice letter should define the Released Parties. 3. A second copy of the proposed order and judgment should not be attached to the proposed order and judgment. ROA 109. The addendum attached to the proposed order and judgment as Exhibit B is not signed. The second addendum should be attached to the proposed order and judgment as an exhibit. The hearing on plaintiff's motion for approval is continued to <u>December 3, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be</u>

		<u>submitted, rather than an “amended settlement agreement,” to streamline the court’s review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
--	--	--